

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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DONAYA MCMILLAN ,

Plaintiff,

SUMMONS

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, POLICE OFFICER
CHARLES CATO, Tax # 945161, POLICE OFFICER
FRANCESCA ORECKINTO, Tax # 954193, POLICE
OFFICER JULIA WATSON, and POLICE OFFICER
JOHN DOES #1-10 (names and number of whom are
unknown at present),

Plaintiff designates Queens
County as the place of trial.

Defendants.

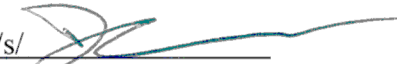
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To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
March 14, 2019

Yours, etc.

/s/ 

JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Charles Cato, Tax # 945161, 113th Precinct Detective Squad, 167-02
Baisley Blvd, Jamaica, NY 11434
Police Officer Francesca Oreckinto, Tax # 954193, 105th Pct, 92-08 222nd St, Queens
Village, NY 11428
Police Officer Julia Watson

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X

DONAYA MCMILLAN ,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CHARLES CATO, Tax # 945161, POLICE OFFICER
FRANCESCA ORECKINTO, Tax # 954193, POLICE
OFFICER JULIA WATSON, and POLICE OFFICER
JOHN DOES #1-10 (names and number of whom are
unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff DONAYA MCMILLAN, by her attorneys, Jacobs & Hazan, LLP, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 13, 2016, at approximately 10:00 p.m., plaintiff Donaya McMillan was lawfully present at the 113th Precinct, Queens, New York, when the defendant police officers unlawfully arrested her without probable cause or any legal justification. The defendants unlawfully seized, unlawfully handcuffed, falsely imprisoned and falsely arrested plaintiff without probable cause or any legal justification to accuse plaintiff of committing a crime or violating the law in any manner. Thereafter, the defendants denied plaintiff the right to due process and a fair trial and maliciously prosecuted plaintiff by initiating and continuing a criminal prosecution against her for crimes she did not commit and for which defendants lacked probable cause to accuse her of committing. The officers maliciously initiated and continued the criminal prosecution against plaintiff without probable cause by providing the District Attorney's Office with false, misleading and incomplete information about the facts that allegedly formed their basis for arresting and prosecuting plaintiff. Plaintiff was required to appear in Criminal Court on approximately 16 occasions to address the false criminal charges brought against her and all charges were dismissed and sealed in their entirety on December 14, 2017. Plaintiff was

deprived of her constitutional and common law rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, assaulted, battered, subjected her to the use of excessive force, denied her the right to due process/ right to a fair trial, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff DONAYA MCMILLAN is and was at all times relevant herein a resident of the State of New York.

3. Defendant Police Officer Charles Cato, Tax # 945161, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant Police Officer Charles Cato, Tax # 945161, is and was at all times relevant herein, assigned to the 116th Precinct Detective Squad.

5. Defendant Police Officer Charles Cato, Tax # 945161, is being sued in his individual and official capacity.

6. Defendant Police Officer Francesca Oreckinto, Tax # 954193, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant Police Officer Francesca Oreckinto, Tax # 954193, is and was at all times relevant herein, assigned to the 105th Precinct.

8. Defendant Police Officer Francesca Oreckinto, Tax # 954193, is being sued in his individual and official capacity.

9. Defendant Police Officer Julia Watson is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant Police Officer Julia Watson is and was at all times relevant herein, assigned to the 116th Precinct.

11. Defendant Police Officer Julia Watson is being sued in his individual and official capacity

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees

and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

18. The CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law on or about June 27, 2018.

19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. By way of background, plaintiff's ex-boyfriend who is the father of plaintiff's children is and was at all times relevant herein known to defendants and the NYPD as a dangerous individual who was one of the leaders of a dangerous gang with members suspected of having involvement in numerous violent crimes.

23. At all times relevant herein, defendants had knowledge of the facts that plaintiff's ex-boyfriend had an extensive history that was documented by the NYPD through Domestic Violence Incident Reports, Complaint Reports, Arrest Reports and Medical Records of

physically assaulting plaintiff on numerous occasions and causing plaintiff to suffer serious physical injuries.

24. On March 5, 2016 and at all times relevant herein, defendants had knowledge of the fact that there was a valid and active Order of Protection against plaintiff's ex-boyfriend which ordered him to stay away from plaintiff, her home, and her place of employment. Furthermore, defendants had knowledge of the fact that on March 5, 2016 there were protections for plaintiff in place that were arranged by Courts and non-profit organizations that assist domestic violence victims which were intended to prevent plaintiff's ex-boyfriend from locating the home address of plaintiff so that he could not pose a physical threat to her.

25. On March 5, 2016 and at all times relevant herein, defendants had knowledge of the fact that there were active criminal cases pending against plaintiff's ex-boyfriend wherein there were allegations that he committed violent crimes, that there were 6 active warrants for plaintiff's ex-boyfriend's arrest, and that plaintiff's ex-boyfriend was released from Riker's Island shortly before said date after he posted bail for one of the active criminal cases pending against him.

26. . On March 5, 2016, as plaintiff was walking from her home to her vehicle she was attacked from behind by a female and a male who had a voice that sounded like her ex-boyfriend, and plaintiff suffered physical injuries that required medical attention from the attack.

27. An individual unknown to plaintiff witnessed plaintiff being attacked, called 911 to report the attack, described the individuals that were attacking plaintiff to the 911 operator, and the description of the individuals provided by the witness ,matched the physical appearance of plaintiff's ex-boyfriend and his girlfriend at the time.

28. At all times relevant herein defendants had knowledge of the fact that a witness that plaintiff did not know called 911 to report the attack on plaintiff on March 5, 2016.

29. An ambulance responded to the scene of the attack on plaintiff and transported her to the hospital for medical treatment.

30. After plaintiff was released from the hospital she filed a police report with defendant Police Officer Cato about the incident. All of the information provided to Officer Cato by plaintiff was true.

31. Plaintiff told Police Officer Cato that she did not see the individuals that attacked her because she was attacked from behind, but she suspected that it was her ex-boyfriend and his girlfriend because she recognized the voice of the male attacker as her ex-boyfriend's voice and he had an extensive history of violence toward plaintiff.

32. Defendant Police Officer Cato had plaintiff identify her ex-boyfriend and his girlfriend in photo-arrays he showed to plaintiff.

33. Thereafter, plaintiff's ex-boyfriend and his girlfriend were arrested for attacking plaintiff on March 5, 2016.

34. Upon information and belief, the Queens District Attorney's Office was using plaintiff's ex-boyfriend as a cooperating witness who was helping them identify individuals in his gang who committed serious violent felony offenses and upon learning that he was arrested a decision was made to decline to prosecute him and his girlfriend for crimes related to the attack of plaintiff on March 5, 2016.,

35. Upon information and belief, the ADA who ultimately prosecuted plaintiff and who was working with plaintiff's ex-boyfriend as a cooperating witness on other criminal prosecutions informed defendants that their office decline to prosecute plaintiff's ex-boyfriend and his girlfriend because they had an alibi and that defendants should arrest plaintiff for filing a false police report.

36. However, defendants investigated the purported alibi of plaintiff's ex-boyfriend and his girlfriend and learned that the purported alibi did not account for the time period when plaintiff was attacked on March 5, 2016 and covered a time period earlier in the day that gave them enough time to travel to plaintiff's house and attack plaintiff.

37. However, upon information and belief, pursuant to the request by the Queens ADA defendants intentionally disregarded the fact that the alibi was not for the time when the attack of plaintiff occurred and proceeded to arrest and initiated a criminal prosecution against plaintiff without probable cause and based upon false, incomplete and misleading evidence presented to the District Attorneys Office and the Court in the underlying criminal case filed against plaintiff.

38. On May 13, 2016, defendant Police Officer Cato contacted plaintiff and asked her to come to the 113th Precinct located at 167-02 Baisley Boulevard, Jamaica, NY 11434 to discuss the incident that occurred on March 5, 2016 where plaintiff was attacked by her ex-boyfriend and his girlfriend.

39. Plaintiff went to the 113th Precinct on May 13, 2016 at 10:00 pm to meet defendant Police Officer Cato with the belief he needed to speak with her so that she could assist him with the arrest and/or prosecution of her ex-boyfriend.

40. However, when plaintiff arrived at the 113th Precinct, defendants unlawfully handcuffed plaintiff, falsely arrested/ imprisoned her, unlawfully fingerprinted and photographed her, and charged her with crimes she did not commit and for which he lacked probable cause to accuse her of committing. T

41. Defendants lacked probable cause to believe plaintiff violated the law or committed a crime, and at no time relevant herein did plaintiff violate the law or commit a crime.

42. Although defendants lacked any evidence to support allegations that plaintiff filed a false report about the incident that occurred on March 5, 2016, defendants advised plaintiff that they were arresting and charging her for falsely reporting the incident that she alleged occurred on March 5, 2016.

43. Plaintiff was unlawfully detained at the 113th Precinct by defendants in a holding cell for many hours.

44. At approximately 2:00 am on May 14, 2016 defendants issued plaintiff a Desk Appearance Ticket and released her from custody.

45. Thereafter, defendants maliciously prosecuted plaintiff and denied her the right to due process/ right to a fair trial.

46. Defendants initiated a criminal prosecution against plaintiff without probable cause by providing the DA's Office with false, misleading and incomplete evidence and facts that purportedly established the defendants' basis for arresting and prosecuting plaintiff.

47. Based upon the false version of events provided by defendants, a criminal prosecution was initiated against plaintiff without probable cause and plaintiff was arraigned in Queens Criminal Court on July 15, 2016, charged with numerous crimes she did not commit and for which the officers lacked probable cause to accuse her of committing, and released on her own recognizance.

48. In addition to being charged with filing a false report regarding the incident that occurred on March 5, 2016, defendants provided false information to the Office of the District Attorney and initiated false criminal charges against plaintiff for filing false reports against her ex-boyfriend in several previous incidents wherein he had physically abused her.

49. Notably, the ADA who was working with plaintiff's ex-boyfriend and arranged for him not to be prosecuted for attacking plaintiff on March 5, 2016 was the ADQA assigned to prosecute plaintiff, but she was forced to recuse herself from the prosecution of plaintiff in the middle of the prosecution due to her conflict of interest.

50. Plaintiff was required to make approximately 17 court appearances before all criminal charges were dismissed and sealed in their entirety on December 14, 2017 and terminated in plaintiff's favor.

51. Those defendants that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

52. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers possess an objective factual basis to believe plaintiff committed a crime or violated the law.

53. Plaintiff paid a private criminal attorney to represent her in the underlying criminal case.

54. Plaintiff suffers from severe anxiety and emotional distress from the experience of being arrested and criminally prosecuted for crimes she did not commit after she was physically attacked by an individual with a long history of domestic violence against her.

55. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe she committed a crime or violated the law.

56. The unlawful search, false arrest/ imprisonment, denial of a right to fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

57. Plaintiff lost her job as a teacher because of the false arrest and malicious criminal prosecution against her and lost income and wages as a result of being fired from her job.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied of her right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of her right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

66. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

67. Defendants lacked probable cause to search plaintiff.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Malicious Prosecution

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

72. Defendants commenced and continued a criminal proceeding against plaintiff.

73. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

74. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

75. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

76. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to

plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

81. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Queens County District Attorney's Office.

87. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Queens County District Attorney's Office.

88. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Queens County District Attorney's Office.

89. In withholding/creating false evidence against plaintiff June Mabry, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under

the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

90. As a result of the foregoing, plaintiff, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

93. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligence

94. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. Defendants owed a duty of care to plaintiff.

96. Plaintiff's injuries were caused defendants breached that duty of care by causing plaintiff to suffer physical injuries as a result of defendants careless, reckless, negligent, and/or accidental behavior by improperly securing plaintiff in the van.

97. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

98. All of the foregoing occurred without any fault or provocation by plaintiff.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

100. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

102. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

104. Defendants failed to intervene to prevent the unlawful conduct described herein.

105. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and she was humiliated and subject to other physical constraints.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

107. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Donaya McMillan demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 14, 2019

By: _____

/s/ 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 14, 2019

/s/ 

DAVID M. HAZAN